

SENATE FLOOR VERSION

February 17, 2025

SENATE BILL NO. 401

By: Frix of the Senate

and

Johns of the House

An Act relating to road construction; prohibiting liability of traffic control contractors and subcontractors under certain circumstances; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1239 of Title 69, unless there is created a duplication in numbering, reads as follows:

A traffic control contractor or subcontractor who provides traffic control services to the Department of Transportation shall not be liable to a claimant for personal injury, property damage, or death arising from the performance of the traffic control services if, at the time of the personal injury, property damage, or death, the traffic control contractor or subcontractor is in compliance with all applicable safety regulations provided by the Department related to the condition or defect that was the proximate cause of the personal injury, property damage, or death.

1 SECTION 2. This act shall become effective November 1, 2025.

2 COMMITTEE REPORT BY: COMMITTEE ON AERONAUTICS AND TRANSPORTATION
3 February 17, 2025 - DO PASS
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